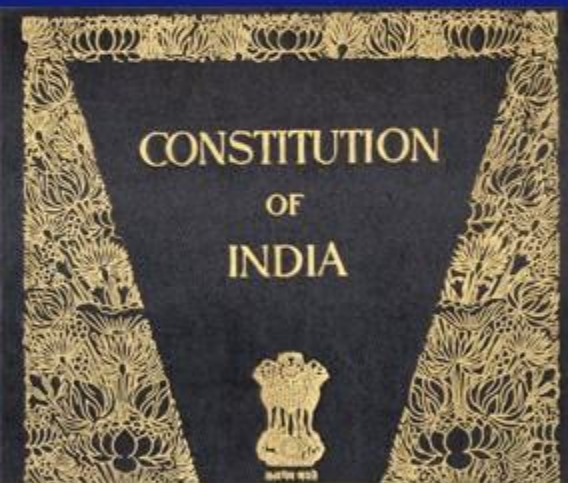


INDIAN POLITY



MODULE - 39

FUNDAMENTAL RIGHTS

- ARTICLE 25
- SABARIMALA ISSUE

RIGHT TO FREEDOM OF RELIGION

ARTICLE 25

FREEDOM OF CONSCIENCE AND FREE PROFESSION, PRACTICE & PROPAGATION OF RELIGION

- 1 Article 25 says that all persons are equally entitled to freedom of conscience and the right to freely profess, practice and propagate religion.
- 2 The implications of these are:
 - a) **Freedom of Conscience:** Inner freedom of an individual to mould his relation with God or Creatures in whatever way he desires,
 - b) **Right to Profess:** Declaration of one's religious beliefs and faith openly and freely.
 - c) **Right to Practice:** Performance of religious worship, rituals, ceremonies and exhibition of beliefs and ideas.
 - d) **Right to Propagate:** Transmission and dissemination of one's religious beliefs to others or exposition of the tenets of one's religion. But it does not include a right to convert another person to one's own religion.

Forcible conversions impinge on the "freedom of conscience" guaranteed to all the persons alike.

RIGHT TO FREEDOM OF RELIGION

ARTICLE 25

FREEDOM OF CONSCIENCE AND FREE PROFESSION, PRACTICE & PROPAGATION OF RELIGION

- 3** From the above, it is clear that Article 25 covers not only religious beliefs (doctrines) but also religious practices (rituals). Moreover, these rights are available to all persons citizens as well as non-citizens.



RIGHT TO FREEDOM OF RELIGION

ARTICLE 25

FREEDOM OF CONSCIENCE AND FREE PROFESSION, PRACTICE & PROPAGATION OF RELIGION



4

However, these rights are subject to public order, morality, health and **other provisions relating to fundamental rights**. Further, the State is permitted to:

- a) Regulate or restrict any economic, financial, political or other secular activity associated with religious practice and
- b) Provide for social welfare and reform or throw open Hindu religious institutions of a public character to all classes and sections of Hindus.

RIGHT TO FREEDOM OF RELIGION

ARTICLE 25

FREEDOM OF CONSCIENCE AND FREE PROFESSION, PRACTICE & PROPAGATION OF RELIGION

- 5 Article 25 also contains two explanations: One, wearing and carrying of Kirpans is to be included in the profession of the Sikh religion and two, the Hindus, in this context, include Sikhs, Jains and Buddhists.



RIGHT TO FREEDOM OF RELIGION

ARTICLE 25

FREEDOM OF CONSCIENCE AND FREE PROFESSION,
PRACTICE & PROPAGATION OF RELIGION

WHAT DOES THE ACTUAL CONSTITUTION SAY?

- (1) Subject to public order, morality, health and other provisions of this Part, all persons are equally entitled to freedom of conscience and the Right to freely profess, practice and propagate religion.
- (2) Nothing in this article shall affect the operation of any existing law or prevent the State from making any law_
 - (a) regulating or restricting any economic, financial, political or other secular activity associated with religious practice;
 - (b) Providing for social welfare and reform or the throwing open of Hindu religious institutions of a public character to all classes and sections of Hindus.

ARTICLE 25 IN CURRENT SCENARIO



SUPREME COURT OPENS SABARIMALA TEMPLE FOR WOMEN OF ALL AGES



- 1** In a majority opinion 4:1, the Supreme Court, lifted the centuries-old practice of prohibiting women from the age of menarche to menopause to enter the Lord Ayyappa temple at Sabarimala in Kerala.
- 2** Supreme Court condemned the prohibition as "**hegemonic patriarchy**". Patriarchy cannot trump freedom to practice religion
- 3** The Court said that it amounts to **discrimination based on a biological factor exclusive to gender**. It was violative of the right to equality and dignity of women.
- 4** With this, **the Supreme Court set aside a 27-year-old Kerala High Court judgment that upheld the prohibition**.
- 5** The High Court had pointed out that the 'Naisthik Brahmachari' nature of the deity was "a vital reason for imposing the restriction on young women".

ARTICLE 25 IN CURRENT SCENARIO



SUPREME COURT OPENS SABARIMALA TEMPLE FOR WOMEN OF ALL AGES

ARTICLE 25

- It recognises the right to freedom of conscience and a right to freely profess, practice and propagate religion.
- There are some exceptions like public order, morality and health and to the other provisions of this Part (also crucially to the guarantee of other fundamental rights).
- Article 25(2)(b) creates a further exception to the right by giving the State a power to make Legislation, in the interests of social welfare and reform.

ARTICLE 26

- It is also subject to limitations imposed on the grounds of public order, morality and health.
- It accords every religious denomination, the right to establish and maintain institutions for religious purposes and to manage their own affairs in matters of religion.

ARTICLE 25 IN CURRENT SCENARIO



SUPREME COURT OPENS SABARIMALA TEMPLE FOR WOMEN OF ALL AGES

ARTICLE 14

The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth.

ARTICLE 25 (1)

Subject to public order, morality and health and to the other provisions of this Part, all persons are equally entitled to freedom of conscience and the right freely to profess, practise and propagate religion.

ARTICLE 26

Freedom to manage religious affairs Subject to public order, morality and health, every religious denomination or any section thereof shall have the right

- a) to establish and maintain institutions for religious and charitable purposes.
- b) to manage its own affairs in matters of religion.

ARTICLE 25 IN CURRENT SCENARIO

WHAT ABOUT INDIAN YOUNG LAWYERS ASSOCIATION CASE IN THE SUPREME COURT?



Article 26 (b) provides right to every religious denominations to "manage its own affairs in matter of religion".

- 1** Rule 3(b) of the Kerala Hindu Places of Public Worship (Authorisation of Entry) Rules, 1965, states, "Women who are not by custom and usage allowed to enter a place of public worship shall not be entitled to enter or offer worship in any place of public worship."
- 2** By placing reliance on these rules, the Sabarimala temple prohibits women aged between 10 and 50 years from entering the shrine.
- 3** It claims, through the Travancore Devaswom Board, its deity, Lord Ayyappa, is a "Naishtika Brahmachari" (eternal celibate), allowing young women to enter the temple would affect the idol's "celibacy" and "austerity".

ARTICLE 25 IN CURRENT SCENARIO

WHAT IS THE ARGUMENT OF TRAVANCORE DEVASWOM BOARD?



- 1 It argued that Sabarimala did not practice exclusion.
- 2 People from all walks of life and from every creed, caste and religion entered and offered their prayers in the temple.
- 3 The Devaswom Board submitted that it was also physiologically impossible for women to observe the 41-day penance before the pilgrimage.
- 4 It reiterated that the restriction found its source in the celibate status of the Sabarimala deity and not in patriarchy.

RIGHT TO FREEDOM OF RELIGION

ARTICLE 25

FREEDOM OF CONSCIENCE AND FREE PROFESSION,
PRACTICE & PROPAGATION OF RELIGION

WHAT DOES THE ACTUAL CONSTITUTION SAY?

- (1) *Subject to public order, morality, health and other provisions of this Part, all persons are equally entitled to freedom of conscience and the Right to freely profess, practice and propagate religion.*
- (2) *Nothing in this article shall affect the operation of any existing law or prevent the State from making any law_*
 - (a) *regulating or restricting any economic, financial, political or other secular activity associated with religious practice;*
 - (b) *Providing for social welfare and reform or the throwing open of Hindu religious institutions of a public character to all classes and sections of Hindus.*

ARTICLE 25 IN CURRENT SCENARIO

RELIGIOUS INSTITUTIONS CANNOT BE PRIVATE



- 1 They are allowed to collect money from the public in the name of various Gods.
- 2 The privilege cannot be extended to a place of worship primarily because the divine is not a commodity, which can be transacted in any exclusive manner.
- 3 Demand for the Right to Privacy in a place of worship will imply the privatisation of God.
- 4 God is the public entity. God is the best example of the idea of public since God by definition is accessible to all.
- 5 This is only because God is in principle available to all on equal terms.

ARTICLE 25 IN CURRENT SCENARIO

RELIGIOUS INSTITUTIONS CANNOT BE PRIVATE



6 God may be housed in a temple, but cannot be imprisoned and restricted to that private space alone.

7 God is not an entity, who can be privatised and put under the control of certain individuals or communities or some dominant males.

8 No one can claim the copy right over the Gods.

9 Even rituals cannot be privatised and copy righted, since they are also done for God.

10 If one takes the case of “Sabarimala”, he is worshiped in Countries with countless temples outside Sabarimala, where women of this proscribed age group enter.

11 He is also worshipped by women of this age in their houses.

MORE ON THE SUPREME COURT JUDGMENT



- 1 One side we pray to goddesses; on the other, women of a certain age are considered “impure”.
- 2 The dualistic approach is nothing but patriarchy practised in religion.
- 3 The ban 'exacts' more purity from women than men.

- 4 Exclusion on grounds of biological and physiological features like menstruation are unconstitutional.
- 5 It amounts to discrimination based on a biological factor exclusive to gender. It is against the dignity of women.
- 6 Justice D.Y. Chandrachud said that the aspect to treat women as the children of a lesser God was to blink at the Constitution. The prohibition was a form of untouchability.

The majority view declared Rule 3(b) of the Kerala Hindu Places of Public Worship (Authorisation of Entry) Act of 1965, which mandates the prohibition in Sabarimala temple, as ultra vires to the Constitution.

INDIAN POLITY

ARTICLE 25 IN CURRENT SCENARIO

WHAT JUSTICE D.Y.CHANDRACHUD SAID?



JUSTICE D.Y.CHANDRACHUD



1 The logic behind the ban was that presence of women deviated men from celibacy.

2 This was placing the burden of men's celibacy on women. It stigmatises women and stereotypes them.

3 Individual dignity of women could not be at the mercy of a mob.

4 Morality was not ephemeral. It transcends biological and physiological barriers.

ARTICLE 25 IN CURRENT SCENARIO

DISSENT OPINION OF JUSTICE INDU MALHOTRA



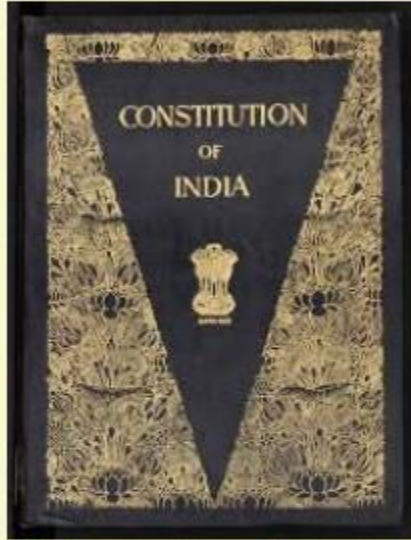
JUSTICE INDU MALHOTRA



- 1** She held that the determination of what constituted an essential practice in a religion should not be decided by judges on the basis of their personal viewpoints.
- 2** Essentiality of a religious practice or custom had to be decided within the religion.
- 3** It was a matter of personal faith. India is a land of diverse faiths. She observed that the freedom to practice their beliefs was enshrined in Article 25 of the Constitution.
- 4** The Sabarimala temple was not funded out of the Consolidated Fund of India.

ARTICLE 25 IN CURRENT SCENARIO

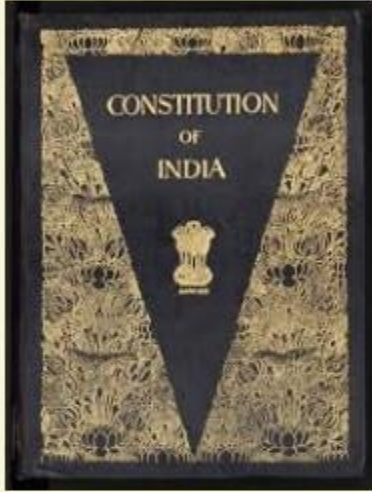
HOW TO VIEW THIS JUDGMENT?



- 1 It reaffirms the Constitution's transformative character and it indicates the Constitution is a dynamic document with progressive realization of rights.
- 2 It derives its strength from the centrality, it accords to fundamental rights.
- 3 The exclusionary practice did not pass the essential practices test or principle of Constitutional morality.
- 4 It is incompatible with dignity, destruction of liberty and a denial of the equality to all human beings.

ARTICLE 25 IN CURRENT SCENARIO

HOW TO VIEW THIS JUDGMENT?



- 5 These Constitutional values stand above everything, when even confronted with a claim of religious belief.
- 6 Claim for the exclusion of women from religious worship is subordinate to the Constitutional values of liberty, dignity and equality. These exclusionary practices are contrary to Constitutional morality.
- 7 It is with the spirit of the times. It expands the rights and freedoms guaranteed in the Constitution.

ARTICLE 25 IN CURRENT SCENARIO

ISSUE RAISES MANY QUESTIONS!

- 1 Several such incidents may crop up in the future, as the Country is known for diverse beliefs and customs.
- 2 What will happen in future to different practices in different temples?
- 3 What about other religious practices in religions like Christianity and Muslims?
- 4 Is the equality doctrine enshrined under Article 14 does override the fundamental right guaranteed by Article 25 to every individual to freely profess, practise and propagate their faith?
- 5 There is an opinion that courts should intervene only when there are oppressive social evils, but not this type of religious practices.
- 6 If notions of rationality are invoked in the matters of religion by the courts, then where is the end? Permitting the PILs in religious matters would open the floodgates.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao

K. Srikanth

D. Sunil Kumar

L. V. Krishna

Y. Deepthi

Amrita Naidu

M. Binukrishna

G. Ravi Babu

D. Joji

K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2

0 9 8 4 9 9 4 2 2 9 9